No defence counsel would know precisely what question to ask in cross-examination, nor at what point of the evidence of a crown witness, without first having instructions from their client. The defence lawyers were not to be duped, hoodwinked and bamboozled in this way by the urbane self-possessed Sir Abdul Qadir. What they wanted was an interview with their clients before cross-examining the approvers in their evidence for the prosecution. Not the next day. They promptly took themselves off the courtroom to have an interview with their clients in Borstal Jail right then and not the next day as was being suggested. They returned to say that they were under strict instructions not to represent their clients unless the order of 25 June 1930 dispensing with their attendance in court was revoked by the special tribunal so as to allow their attendance in court as was their right. The lawyers for the defence found themselves in an untenable situation. There was nothing more left for them to do. Among the lawyers, Amolak Ram, Baljit Singh and Amar Dass too left the courtroom.

With neither the accused nor their redoubtable lawyers in court, all the prosecution now had to do was to hurtle through the evidence of the prosecution witnesses. With all the advantages before it, the prosecution still failed to redeem itself. Some two weeks later, on 8 July 1930, it called the traffic inspector of police in Lahore, W.J.G. Fearn, to give his evidence-in-chief, because he had been present at the murder scene. Fearn had been present from the time of Saunders stumbling out of the gate of the Anarkali Police Station with his motorbike, to the time when after giving chase to the assailants, Head Police Constable Chanan Singh had collapsed with a bullet wound in his chest. In every way, he was the prosecution's star witness of the killing. He failed, however, to identify either Bhagat Singh or Rajguru. This was despite there being 'several' identification parades held specifically for him. When asked by Carden Noad, his nonchalant response was, 'I attended several identification parades but failed to pick up the two assailants of Mr Saunders.' This is quite remarkable, given that one of them had actually fired directly at Fearn just as he was himself giving chase to them. The absurdities did not end there. When on 10 July 1930, copies of the charge sheets were served by the tribunal on the fifteen accused who